

22STCV33452 22STCV33452

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-09
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Case Number: 22STCV33452 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SAEROM HA, et al.,

Plaintiffs,

vs.

CENTURY WEST, LLC, et al.,

Defendants.

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CASE NO.: 22STCV33452

[TENTATIVE] ORDER DENYING MOTION FOR JUDGMENT
NOTWITHSTANDING THE VERDICT; DENYING MOTION FOR NEW TRIAL

Dept. 506

8:30 a.m.

July 9, 2026

On

March 24, 2026, a jury returned a verdict in favor of Plaintiffs Saerom Ha and Jason
Ha and against Defendant BMW of North America LLC. The Court entered judgment on April 23, 2026.

On

May 22, 2026, Defendant filed a combined motion for judgment notwithstanding the
verdict, or in the alternative, for a new trial.

DISCUSSION

The

court must render judgment notwithstanding the verdict whenever a motion for a directed
verdict for the aggrieved party should have been granted. (Code Civ. Proc., § 629.) "A motion for judgment notwithstanding
the verdict

may be granted only if it appears from the evidence, viewed in the light most favorable
to the party securing the verdict, that there is no substantial evidence in support." (Sweatman v. Department of Veterans
Affairs

(2001) 25 Cal.4th 62, 68.) "If the evidence

is conflicting or if several reasonable inferences may be drawn, the motion for

judgment notwithstanding the verdict should be denied.” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 110 (Hauter).)

A

verdict may be vacated and a new trial ordered due to irregularity in the proceedings that prevented a party from having a fair trial, misconduct of the jury, accident or surprise, newly discovered evidence, excessive or inadequate damages, insufficiency of the evidence to justify the verdict, or error in law. (Code Civ. Proc., § 657.)

Generally,

Defendant contends that the vehicle's noisy breaks did not constitute a breach of express warranty, and Plaintiffs “failed to submit competent, admissible evidence to support this theory.” (Motion at pp. 9-10.)

Defendant

argues that Plaintiffs failed to show that such a defect was covered under the express warranty. (Motion at p. 13.) In fact, the warranty provides coverage for “defects in material or workmanship” in “brake pads/linings” and brake disks. (Ibid.; Opposition at p. 6.)

Defendant

also relies on its expert, who “testified extensively that, because these brakes need to have the capability to stop this very powerful and very fast vehicle, they are designed differently than the brakes on a standard vehicle and that noise coming from the brakes, especially when used at low speeds, is normal and not a defect.” (Motion at p. 10.) Defendant points to a Service Information Bulletin

“that affirms the brakes used on the subject vehicle are ‘high performance brake systems, which are designed for sporty dynamic driving styles. As a side effect of the highest possible break performance, customers are likely to hear noises due to the extremely resilient materials.’” (Ibid.) According to Defendant, “[t]he only evidence in support of Plaintiffs’ argument that the brake noise constituted a ‘defect’ or a nonconformity to the express warranty was Plaintiffs’ testimony that the brakes were loud,” which is not evidence that they were defective. (Id. at p. 11.) Yet, the noises described in the owner’s manual are “only described as operational noises, not the screeching noise Plaintiffs experienced.”

(Opposition at p. 6.) Plaintiff Mr.

Ha “described the noise as nails against a chalkboard,” and he “provided objective evidence of the noise as he recorded a video of the noise which was played several times before the jury.” (Ibid.)

Defendant

further argues that a design defect cannot form the basis of an express warranty cause of action under Song-Beverly. (Motion at pp. 14-17.) According to Defendant, “substantial testimony demonstrated that the brakes on the subject vehicle worked as designed.” (Id. at p. 16.) Defendant again relies on its expert, multiple dealership employees, a Service Information Bulletin, and the owner’s manual. (Id. at pp. 16-17.) But Plaintiff Mr. Ha “confirmed that he only experienced the noise defect 3,000 to 4,000 miles after he leased the car which was well beyond the break in period of 300 miles.” (Opposition at p. 8.)

Defendant argues that there was no substantial evidence of willfulness to support double civil penalties. (Motion at pp. 17-18.) Defendant acknowledges that this requires a finding that the vehicle had a warrantable defect and that Defendant intentionally declined to follow its legal obligations under Song-Beverly. (Id. at p. 18.) Plaintiffs requested a repurchase, and the only documentation of Defendant’s evaluation of the merits of Plaintiffs’ request was “Declined.” (Opposition at p. 9.) Additionally, Defendant’s Person Most Qualified confirmed that he made no notes during his evaluation, and Defendant has no written policies and procedures to help facilitate the review of the merits of a customer’s repurchase request. (Id. at pp. 9-10.)

Finally, Defendant argues that the implied warranty verdict must also be set aside. (Motion at pp. 19-20.) Defendant observes that the jury recognized that the subject vehicle was fit for the ordinary purpose for which vehicles are used, but the jury “found for Plaintiffs on implied warranty because it determined the subject vehicle was not ‘of the same quality as those generally acceptable in the trade.’” (Id. at p. 20.) According to Defendant, “[h]ad the verdict form accurately reflected the language in Song-Beverly, it is apparent that Plaintiffs did not meet [their] burden.” (Ibid.) But as Plaintiffs highlight, “Defendant stipulated to this language on the verdict form, and it cannot claim foul now.” (Opposition at p. 11.)

The jury was instructed with CACI 107, which includes, “If you believe it is true, the testimony of a single witness is enough to prove a fact.” The jury was also instructed with CACI 219, which provides that in determining whether to believe an expert’s testimony, the jury should consider “[t]he facts the expert relied upon” and “[t]he reasons for the expert’s opinion.” Following these instructions, the jury apparently believed Plaintiff Mr. Ha’s testimony and considered the bases and weaknesses of the experts’ opinions.

The

Court determines that when viewing the evidence in the light most favorable to the opposing party, several reasonable inferences may be drawn from the evidence to support the verdict. (See *Hauter*, supra, 14 Cal.3d at p. 110.) The motion for judgment notwithstanding the verdict is DENIED.

Similarly,

after weighing the evidence, the Court is not convinced that the jury clearly should have reached a different verdict or decision.

(Code Civ. Proc., § 657.) The motion for new trial is DENIED.

CONCLUSION

The

Motion is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 9th day
of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court